

24STCV26881 24STCV26881

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-08

Motion: MOTION TO BE RELIEVED AS COUNSEL—CIVIL

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Case Number: 24STCV26881 Hearing Date: September 8, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - CENTRAL DISTRICT

Lizette Torres as Guardian Ad Litem for Minor Child Leah Hernandez,

Plaintiff,

vs.

Sweet Flores, an individual; Dulce Flores, an individual; Alison Alfaro, an individual; and Does 1 to 30,

Defendants.

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CASE NO: 24STCV26881

[TENTATIVE] ORDER RE: MOTION TO BE RELIEVED AS COUNSEL—CIVIL

Dept. 731

September 8, 2026

8:30 a.m.

Matter No. 7

Moving Party: Counsel, Douglas B. Vanderpool

Opposing Party: None

Notice: OK

Now before the Court is counsel Douglas B. Vanderpool's motion to be relieved as counsel for Plaintiff Lizette Torres as Guardian Ad Litem for Minor Child Leah Hernandez.

The Court's review shows that counsel's moving papers satisfy the requirements of California Rules of Court, rule 3.1362: The motion and its corresponding declaration and proposed order were properly executed, filed, and served on Plaintiff and Defendants (none of whom have appeared in this action, and against all three of whom Plaintiff secured entries of default on May 29, 2026), via authorized means (U.S. mail), as reflected in the proofs of service accompanying the moving papers. (See Jul. 17, 2026, Filings & attached Proofs of Service.)

Separately, trial in this action is set for April 12, 2027, affording Plaintiff the opportunity to find substitute counsel to complete either the default proceedings or continue litigating this action, where no opposition from Plaintiff or Defendants appears in

the record, showing insufficient prejudice to override relief. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915 [court should consider whether the attorney's "withdrawal can be accomplished without undue prejudice to the client's interests"].)

Moreover, there is no basis to determine that undue delay or injustice will arise from the Court relieving counsel of representation for Plaintiff, particularly where entries of default have been secured against all Defendants. (See Mandell v. Superior Court (1977) 67 Cal.App.3d 1, 4 [motion should be denied if it will cause undue delay in the proceeding or cause injustice].)

The Court accordingly GRANTS counsel's motion, which shall be effective upon the filing of the proof of service of this signed order upon the client.

Plaintiff Lizette Torres as Guardian Ad Litem for Minor Child Leah Hernandez is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 8, 2026 _____

MARK C. KIM

Judge of the Superior Court